

Sunil Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 October 2019 · WRIT-C No. 34405 of 2019 (All.) · WRIT - C No. 34405 of 2019 · **Writ disposed; arrears directed to be paid in installments under clause 6.14.**

HEADNOTE

Where a consumer facing recovery of electricity dues is ready to pay in installments, the High Court may itself fix the schedule under clause 6.14 of the U.P. Electricity Supply Code, 2005 rather than relegating him to the Executive Engineer. Default automatically ends the facility.

FACTUAL SUMMARY

Sunil Kumar faced recovery of Rs. 2,80,534 dated 22 May 2019 as electricity dues. He approached the Allahabad High Court offering to pay the entire amount. Counsel for the respondents stated that if the petitioner wanted installments he could approach the Executive Engineer, who could fix them under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court noted that the matter was already before it and that the petitioner was ready to pay in installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity arrears

HOLDING

The Court directed the petitioner to pay Rs. 80,534 towards electricity arrears of Rs. 2,80,534 by 15 November 2019 and the balance Rs. 2,00,000 in four equal installments of Rs. 50,000 each in December 2019 and January–March 2020, the last installment to include accruing interest, under clause 6.14 of the U.P. Electricity Supply Code, 2005; default in any installment would automatically end the benefit. The writ petition was disposed of. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 High Court itself fixed the clause 6.14 installment schedule rather than sending the consumer to the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE ELECTRICITY DUES OF RS. 2,80,534

The petitioner offered to pay the entire amount; the Court did not examine the underlying bill. ¶ 1